

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 28, 2025

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Dr. Kathy Emmons, Ken Esquibel, Pete Laybourn, Mark Moody, Scott Roybal, Tom Segrave and Jeff White (via Zoom). Absent: Dr. Mark Rinne. Also present: Kylie Soden, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Esquibel and Mr. Moody, item #13 was removed from the Consent Agenda. Upon request by Dr. Aldrich, and pursuant to support received by Mr. Esquibel and Mr. Moody, item #21(a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on April 14, 2025. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a winery liquor license application filed with the City Clerk’s Office for Wagonhound Wine LLC d/b/a Wagonhound Wine Company, 1610 Capitol Ave., Cheyenne, WY. Public comment was made by: Jackson Laybourn. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. There being no further comments or input and the purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Amending Section 10.24.190, Critical Traffic Control Areas; Creation and Administration; Enhanced Penalties, of the Municipal Code of the City of Cheyenne, Wyoming, modifying the provisions governing the creation and enforcement of such areas. Reporting for Public Services Committee, Mr. Segrave moved to approve on third and final reading, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn voting “no”. (#4619)

ORDINANCE –3rd READING – Amending Chapter 10.82, Motor-assisted Scooters, Electric Bicycles, and Bicycles Equipped with GPS of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, authorizing dockless vehicle companies to conduct business in the city using the city's formal procurement process, making a conforming amendment and repealing obsolete provisions. Reporting for Finance Committee, Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Roybal. Mr. Moody moved to amend

by removing Section 10.82.110(A) numbers 7 and 8 and Section 10.82.110(B) numbers 7 and 9, seconded by Dr. Aldrich. Dr. Aldrich moved to amend the amendment by adding back in Section 10.82.110(A) number 7 and Section 10.82.110(B) number 7, seconded by Mr. Moody. Motion to amend the amendment carried. Voting “yes” – all members of the governing body present with the exception of Mr. Roybal voting “no”. Motion to amend failed. Voting “no” – all members of the governing body present with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Moody voting “yes”. Dr. Aldrich moved to amend Section 4 by changing 40 days to 14 days, seconded by Mr. Esquibel. Motion to amend carried. Voting “yes” all members of the governing body present. Mr. Segrave moved to amend to replace Section 4 language with the following: “Upon the effective date of this ordinance as specified by Section 6, the city clerk shall not renew any dockless vehicle license issued pursuant to former Section 10.82.030, as repealed herein. Upon the City’s issuance of the first operating agreement in accordance with Section 1 of this ordinance, the city clerk shall provide written notice to each person holding a dockless vehicle license issued under the repealed Section 10.82.030. The notice shall state that the licensee shall have no more than forty (40) days from the expiration date of the licensee’s dockless vehicle license to remove any and all property associated with the licensee’s dockless vehicle operations from the public right-of-way. The required notice shall be sent to the licensee’s address of record and, if available, to the licensee’s email address on file with the city clerk. Any property remaining in the public right-of-way after the expiration of the forty (40) day period shall be deemed abandoned and may be removed and disposed of by the City in accordance with applicable state and local laws”, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” all members of the governing body present with the exception of Mr. Laybourn voting “no”. Main motion, as amended, carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn and Mr. Moody voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Moody and Mr. Roybal. (#4620)

ORDINANCE –2nd READING – Amending and updating the Solid Waste Fee Schedule in accordance with Section 8.44.010 of the Municipal Code of the City of Cheyenne, Wyoming and repealing Ordinance No. 4571. Mr. Laybourn moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Moody voting “no”.

ORDINANCE –2nd READING – Repealing Chapter 12.28, Downtown Graffiti Abatement Pilot Program of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Segrave moved to approve on second reading, seconded by Dr. Emmons. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Amending Sections 1.4.3, 1.4.4, and 5.7.2 of the Unified Development Code to amend specific uses allowed as Home Occupations and add clarifying definitions – referred to Public Services Committee. (Sponsors – Mr. Moody and Mr. Segrave)

RESOLUTION – Granting an exception to the '201 Agreement' for the owner of the property located south of High Plains Road and west of South Greeley Highway, between Robert Avenue and Dayshia Lane. Mr. Segrave moved to adopt, seconded by Mr. Roybal. Mr. Segrave moved to postpone to May 12, 2025, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body present.

RESOLUTION – Re-appropriating the Fiscal Year 2025 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 and 16-4-113. Mr. Laybourn moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Dr. Aldrich. (#6458)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Trailhead Estates, 1st Filing, City of Cheyenne, Laramie County, Wyoming (located northeast of the intersection of Ogden Road and Crane Bluff Road). Motion (per Consent Agenda) carried. (#6459)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Trailhead Estates, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Ogden Road and Crane Bluff Road). Mr. Segrave moved to adopt with acknowledgment of relief to reduce lot frontage from 30’ to 27’ for DD8 single-family lots not facing open space, and subject to the applicant making technical corrections prior to recording of the plat, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: John Edwards, Edwards Development and David Greg. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Esquibel, Mr. Laybourn, Mr. Moody, Mr. Roybal and Mr. Segrave. (#6460)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Jolly Rogers, 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located Northwest of U.S. 30 and Whitney Road). Motion (per Consent Agenda) carried. (#6461)

[CA] RESOLUTION – Expressing the support of the Governing Body for acceptance of real property from Sloan Lake, LLC – referred to Public Services Committee (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Finding and declaring certain areas within the City of Cheyenne as blight and authorizing the redevelopment thereof in accordance with Wyoming Statute § 15-9-106 – referred to Public Services Committee (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of various tracts of land completely surrounded by current city limits situate in northeast Cheyenne generally located north Dell Range Boulevard, west and east of Ridge Road, and south of Storey Boulevard – referred to Public Services Committee (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Certifying and adopting the Belvoir Ranch Master Plan – referred to Public Services Committee (Sponsor – Mr. Segrave)

Contract Modification #1 to Contract #7633 between the City of Cheyenne and Laramie County Community College for the CDL “Your Truck” Training Program (Various City Funds). Mr. Laybourn moved to approve, seconded by Mr. Moody. Motion carried. Voting “yes” all members of the governing body present. Comment was made by the following member of the governing body: Dr. Aldrich. (#7633)

[CA] Contract Modification #1 to Contract #7955 between the City of Cheyenne and Trihydro Corporation for Landfill Mapping and Survey Services (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$49,008.00). (#7955)

[CA] Consideration of Bid #E-16-25 for furnishing a 2000 Gallon Single Axle Oil Distributor Truck for the City of Cheyenne, Street & Alley Division (2023-2026 Optional 1% Sales Tax). Motion (per Consent Agenda) carried (accepted the bid from Floyd's Truck Center Inc., Cheyenne, in an amount not to exceed \$307,361.75).

[CA] Consideration of Bid #E-17-25 for furnishing a 2000 Gallon Water Truck for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax). Motion (per Consent Agenda) carried (accepted the bid from Floyd's Truck Center Inc., Cheyenne, in an amount not to exceed \$416,227.70).

[CA] Consideration of Bid #E-18-25 for furnishing a 30 Yard Rolloff Truck for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted the bid from Floyd's Truck Center Inc., Cheyenne, in an amount not to exceed \$232,698.85).

[CA] Consideration to purchase between the City of Cheyenne and Advanced Security Technologies LLC, for the purchase of nine (9) Modular Vehicle Barrier Systems and Trailer Packages (General Fund Reserves) – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne and Ace Equipment & Supply Company, for the purchase of two (2) sets of Rotary Mobile-Column Lifting Systems (Fleet Maintenance Fund & Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-17-25 for an agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the 2025 City Overlay #1 Project (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-18-25 for an Agreement between the City of Cheyenne and Miller & Sons Construction Inc. for the 2025 Miscellaneous Concrete Project (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-21-25 for an Agreement between the City of Cheyenne and T C Solutions, LLC, for the Christensen Road Modifications: Drainage, Signage and Lighting Project (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Bar & grill liquor license application filed with the City Clerk's Office for Frontier Daze, LLC d/b/a Cheba Hut, 3838 Atkin St., Cheyenne, WY. Motion (per Consent Agenda) carried.

Appointment of Jennifer Jo Barley-Dunning to the Housing and Community Development Advisory Council. Mr. Roybal moved to approve, seconded by Dr. Emmons. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Governing body comment was made by Mr. Moody on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held May 12, 2025 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a restaurant liquor license application filed with the City Clerk's Office for Fox & Friends Inc. d/b/a Spice Zone Indian Restaurant, 600 W. 19th St., Cheyenne, WY.

Public comment was made by the following under Other Business: Jason Sanchez.

The following members of the governing body made comments under Other Business: Dr. Aldrich and Mr. Segrave.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:09 pm.

Submitted by,

Kylie Soden,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 7, 2025